

Amendment No. 1 to HB0581

Crawford
Signature of Sponsor

AMEND Senate Bill No. 627

House Bill No. 581*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 2, Chapter 10, Part 3, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Registry" means the registry of election finance; and

(2) "Vendor" means a third-party payment processor, other than a financial institution licensed under title 45, that facilitates contributions to a candidate for a seat in the general assembly or a political campaign committee for such candidate through an online contribution platform.

(b)

(1) A candidate for a seat in the general assembly or a political campaign committee for such candidate shall not:

(A) Accept contributions through an online contribution platform, respectively, that, in the aggregate, exceed more than fifty percent (50%) of the candidate's or committee's total contributions for a primary or general election cycle; or

(B) Accept contributions through an online contribution platform that is not registered as a vendor with the registry under this section.

(2) A vendor shall ensure that individual contributions made using a credit or debit card are verified by requiring the donor to provide the card

verification value (CVV) number on the credit or debit card used to make the contribution.

(c)

(1) A vendor, prior to utilization of an online platform to receive contributions, shall:

(A) Register with the registry and obtain a unique vendor identification number; or

(B) Register with the registry and provide the registry with a unique vendor identification number assigned to the vendor by another state or the United States government.

(2) The registry shall maintain the unique identification number of each vendor that registers with the registry under subdivision (c)(1).

(3) A vendor shall update the registry with its unique vendor identification number not less than annually.

(d) Not later than ten (10) days upon request, a vendor shall provide:

(1) The registry with any information requested by the registry during an audit of the vendor by the registry; and

(2) The candidate, the political campaign committee, or the registry with the donor data of the vendor for the current election cycle.

(e) A vendor who violates this section commits a Class 2 offense and is subject to the civil penalty for such offense prescribed by § 2-10-110.

(f)

(1) A person or entity who knowingly uses a credit or debit card to make a political contribution through a vendor without the express consent of the issuer of the credit or debit card or the person or entity to whom the credit or debit card is issued commits the offense of:

(A) Identity theft under § 39-14-150; and

(B) Illegal possession and fraudulent use of a credit or debit card under § 39-14-118.

(2) It is unlawful for a candidate for a seat in the general assembly or a political campaign committee for such candidate to knowingly use a vendor for purposes of receiving campaign contributions that is not registered with the registry under this section. A violation of this subdivision (f)(2) is a Class A misdemeanor.

(g) The registry may refer any allegations or evidence of the commission of an offense under subsection (f) to the appropriate law enforcement agency and district attorney general.

(h) The registry may promulgate rules for purposes of implementing this section in accordance with the Uniform Administrative Procedures Act, codified in title 4, chapter 5.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.